

## PIPELINE EASEMENT

**BE IT KNOWN BE ALL PERSONS PRESENT** that City of Cheyenne, Wyoming, a Municipal Corporation, whose address is 2101 O'Neil Avenue Room 101, Cheyenne, WY 82001, for itself and its heirs, administrators, successors, and assigns (collectively "**Grantor**"), for and in consideration of the sum of One Hundred and no/100ths Dollars (\$100.00) and other good and valuable consideration, the receipt and sufficiency of which is hereby acknowledged and confessed, has granted, conveyed, sold, and warranted, and does hereby grant, convey, sell, and warrant unto Samson Exploration, LLC, a Texas limited liability company whose address is 110 West 7th Street, Suite 2000, Tulsa, Oklahoma 74119 and its affiliates, successors, and assigns (collectively "**Grantee**") an easement, servitude, license, and right to use (the "**Easement**") in, upon, across, through, over, and under the lands described on the attached **Exhibit "A"** located in Laramie County, Wyoming (the "**Lands**"), as said Easement is more fully described as follows:

Pipeline — The right to use a thirty feet (30') wide strip across the Lands to survey, lay, construct, install, operate, inspect, protect, alter, maintain, improve, repair, change the size of, relocate, add, replace, remove, and/or abandon in place one or more pipelines and all valves, fittings, devices for controlling electrolysis and/or cleaning pipeline interiors, and/or other necessary appurtenances above and below ground, including suitable markers to mark the location of the pipeline(s), for the purposes of transportation of oil, gas, petroleum products, water and/or any other liquids, gases, or substances which can be transported through pipelines. This right shall be expanded from time to time during any period(s) of construction, maintenance, or repair to a width of sixty feet (60') for so long as such use is reasonably necessary for the operations being conducted, and shall revert to the permanent width set forth above upon completion thereof. Grantee shall maintain the uppermost part of the underground portions of said pipelines at least thirty-six inches (36") below the surface of the ground, but this limitation shall not apply to any portion of the pipelines or other equipment installed above the surface.

The approximate location(s) of the Easement associated with the pipeline are set out on the plat attached hereto and marked as Exhibit "B". Grantee may, in its sole judgment, replace the preliminary plat attached hereto as Exhibit "B" with a final or as-built surveyed plat depicting the actual boundaries or centerlines of said pipeline by recording a designation of easement location ("Designation") in the county in which the applicable Lands are situated, and any such Designation and any exhibits thereto shall supersede and/or replace that portion of the Exhibit "B" attached hereto which has been re-surveyed and re-platted as provided herein. Upon request, Grantee shall forward a copy of such Designation to Grantor.

The rights granted herein include the right of ingress and egress over and across any existing or future trails, roads, or canals on the Lands which were not constructed by Grantee to carry out and fulfill all purposes described herein. Grantee acknowledges that Grantor intends to install a gravel trail on the Lands, and that said trail may at some time become a paved trail. Grantee shall repair any damages to such trails, roads, or canals caused by Grantee's use to as close to their condition prior to Grantee's use as is practicable.

The rights granted herein include the right to construct, install, operate, maintain, repair, replace, add to, and remove electric, communication, and/or control lines either above or below the Lands as may be beneficial to Grantee's operations.

Without prior, written consent of the Grantee, Grantor shall not construct or permit construction within the boundaries of the Easement reflected on Exhibit "B" or a Designation, and Grantee shall have the right to prevent the construction therein and the right to remove therefrom, any and all types and sizes of houses, barns, buildings, structures, permanent impoundments of water, and natural or man-made obstructions, including but not limited to trees, brush, roots, and other growth. Grantor shall not, nor permit third parties to, change the grade of the land or remove the cover over the Pipeline or excavate on or near such portions of the Easement without prior written consent of the Grantee, which consent shall not be unreasonably withheld provided same does not present an operational or safety issue for Grantee.

Except as otherwise set forth herein, the consideration paid hereunder includes payment for all damages to the Lands, and Grantor hereby acknowledges receipt and sufficiency of said payment as full and complete settlement for and as a release of all claims for loss, damage, or injury to the Lands arising out of the operations contemplated hereunder. Grantee shall have the right from time to time to cut or clear trees, brush, and other obstructions on the Lands that might interfere with the operation, access to, or maintenance of the easements granted herein or any facilities or equipment thereon relating to the rights granted herein. This Easement shall in no way diminish, lessen, or remove any rights now or hereafter held by Grantee, its successors or assigns, by and through any and all oil, gas, and mineral lease(s) or any other agreements that cover all or any portion of the Lands subject to this Easement.

Grantor represents and warrants title to the herein granted Easement unto Grantee, its successors and assigns, and does hereby agree to forever defend all and singular such interest unto Grantee, its successors and assigns, against any person whomsoever claiming or to claim the same. This Easement and all of the terms, provisions and obligations hereof shall be covenants running with the Lands and shall inure to the benefit of and be binding upon Grantor and Grantee and their respective successors, heirs, and assigns.

Upon the termination of this Easement, Grantee shall perform all work necessary to purge or remove all flammable or explosive substances contained within and to cap or seal any pipelines buried pursuant to this Easement in accordance with all applicable laws, regulations, and sound engineering practices. All pipe left in place shall then become and remain the sole property of Grantor to the exclusion of any claim by Grantee or any party claiming by, through, or under Grantee. At such time Grantor shall accept, and shall be deemed to have accepted, all such pipelines "AS-IS" and "WHERE-IS", with all faults and defects, and without warranty of any kind whatsoever, and assumes and agrees to bear all risks and responsibilities related thereto.

GRANTEE SHALL INDEMNIFY GRANTOR AGAINST ANY CLAIMS, DAMAGES, DEMANDS, LIABILITIES, AND COSTS TO THE EXTENT ARISING FROM OR RELATED TO THE NEGLIGENCE OR MISCONDUCT OF GRANTEE OR ITS EMPLOYEES, AGENTS, CONTRACTORS, OR INVITEES IN THE COURSE OF THEIR EXERCISE OF RIGHTS

GRANTED BY THIS EASEMENT, BUT NOT TO THE EXTENT CAUSED BY GRANTOR, OR ITS EMPLOYEES, AGENTS, CONTRACTORS, OR INVITEES.

Grantor hereby enters into this Agreement and receives full consideration on behalf of Grantor and any surface tenants, surface lessees, permittees, and licensees on the Lands, and their respective successors, heirs, and assigns. Grantor is responsible for sharing such consideration with any such individual(s) or entity(ies), to the extent they are entitled to compensation related to Grantee's activities.

The rights granted herein are non-exclusive, and Grantor reserves and retains the right to convey similar rights to such other persons as Grantor may deem proper; provided, however, that all such conveyances shall be subject to Grantee's rights, and Grantee shall not be unreasonably disturbed in the use and enjoyment of the rights granted herein.

In the event Grantee shall be in default or breach of any of the terms of this Easement, Grantor shall give written notice to Grantee of such default or breach. Grantee shall then have ninety (90) days within which to commence to remedy any alleged default.

Any notice provided or permitted to be given in this instrument must be in writing and may be given by depositing the notice in the United States mail, postage prepaid, certified with return receipt requested, and addressed to the party to be notified. Notice deposited in the mail in the foregoing manner shall be deemed received five (5) days after it is so deposited, excluding Saturdays, Sundays, and postal holidays. Notice given in any other manner shall be effective only if and when actually received by the party to be notified. For purposes of notice, the addresses of the parties shall be as follows until changed as herein provided:

Grantor: City of Cheyenne, Wyoming  
2101 Oneil Ave. Room 101  
Cheyenne, WY 82001

Grantee: Samson Exploration, LLC  
ATTN: Surface Land Manager  
110 West 7th Street, Suite 2000  
Tulsa, Oklahoma 74119

Either party may designate a different address for receipt of subsequent notices by notifying the other as provided in this paragraph.

**TO HAVE AND TO HOLD** the above-described Easement unto Grantee, its successors and assigns, subject to all of the provisions and conditions hereinafter contained, for five (5) years following initial construction and for so long thereafter as some or all of the same shall be used for the purposes which are herein granted with no cessation of all such use for more than five (5) consecutive years. Grantor does hereby grant unto Grantee, its successors and assigns, the right to freely assign or otherwise convey all or part of Grantee's interest in all or part of said Easement without obtaining the prior written or oral consent of Grantor. If Grantee transfers its interest hereunder in whole or in part, Grantee shall be relieved of all obligations thereafter arising with

respect to the transferred interest, and failure of the transferee to satisfy such obligations with respect to the transferred interest shall not affect the rights of Grantee with respect to any interest not so transferred.

This instrument may be executed as one document or in several partially executed counterparts, and the original and counterparts shall be construed together and shall constitute one instrument. The failure of one or more parties to execute this instrument or a counterpart hereof shall not in any manner affect the validity and binding effect of the same as to the parties who execute said instrument. For recordation purposes, Grantee is authorized to detach the signature and acknowledgement pages from one or more counterparts and to attach them for filing with any other executed counterparts.

[This Space Intentionally Left Blank]

EXECUTED this \_\_\_\_\_ day of \_\_\_\_\_, 2023.

GRANTOR:

(SEAL)  
Attest:

CITY OF CHEYENNE

\_\_\_\_\_  
Kristina F. Jones, City Clerk

By: \_\_\_\_\_  
Patrick Collins, Mayor

STATE OF WYOMING:     )  
                                          )  
COUNTY OF LARAMIE     )

This instrument was acknowledged before me on this \_\_\_\_\_ day of \_\_\_\_\_, 2023, by \_\_\_\_\_.

\_\_\_\_\_  
Notary Public

GRANTEE:

SAMSON EXPLORATION, LLC

By: \_\_\_\_\_  
Andy Eltiste, Attorney-in-Fact

STATE OF COLORADO     )  
                                          )  
COUNTY OF JEFFERSON     )

This instrument was acknowledged before me on this \_\_\_\_\_ day of \_\_\_\_\_, 2023, by Andy Eltiste, as Attorney-in-Fact for Samson Exploration, LLC, on behalf of the company.

By: \_\_\_\_\_

Exhibit "A"

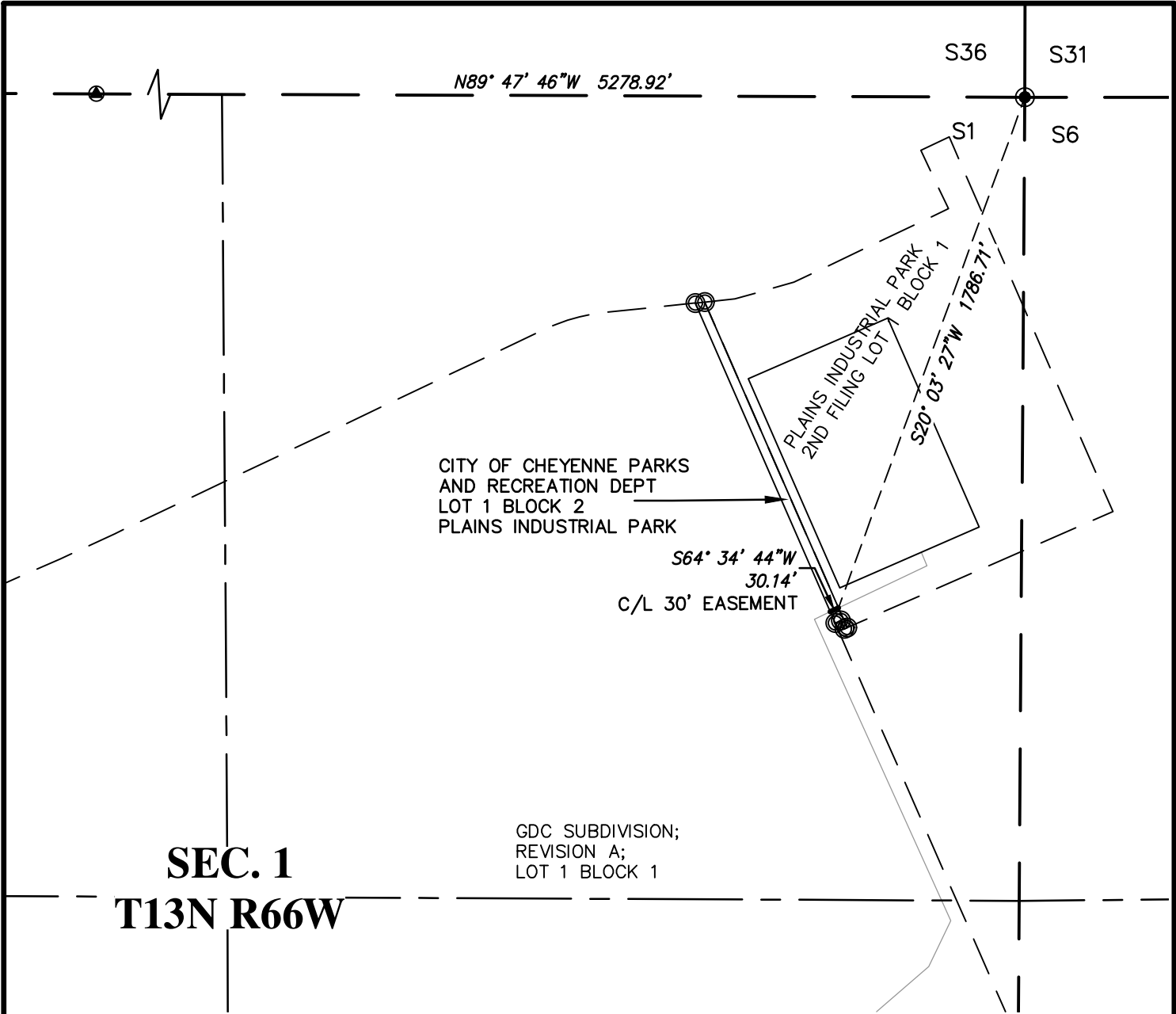
Township 13 North, Range 66 West, 6<sup>th</sup> P.M.

Section 1: Part NE/4 & Part S/2

Laramie County, Wyoming

Exhibit “B”

[attach plat]



EASEMENT DESCRIPTION

A 30 foot wide pipeline easement, lying in a portion of Lot 1, Block 2, Plains Industrial Park situate in the Northeast Quarter of Section 1, Township 13 North, Range 66 West, 6th P.M., Laramie County, Wyoming said easement extending 15 feet each side of the following described centerline.

Beginning at the Northeast Corner of Section 1, thence S20°03'27"W, a distance of 1786.71 feet to the true point of beginning being on the East line of said Lot 1; thence S64°34'44"W, a distance of 30.14 feet to the West line of said Lot 1 and said easement there terminates.

**BASIS OF BEARINGS:**  
WYOMING STATE PLANE COORDINATES,  
EAST ZONE, NAD83-2011,  
US SURVEY FEET, DISTANCES ARE GRID  
DISTANCES.

**NOTES**  
30 FEET  
2 RODS  
0.02 ACRES

- LEGEND**
- FOUND ALUMINUM CAP PLS 2500
  - FOUND ALUMINUM CAP PLS 9964
  - FOUND ALUMINUM CAP LS 12045
  - PIPE LINE

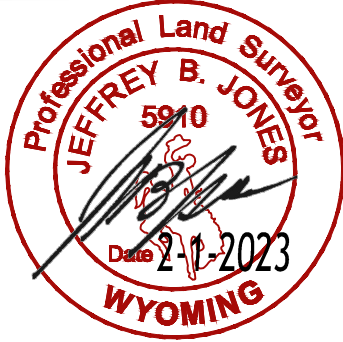
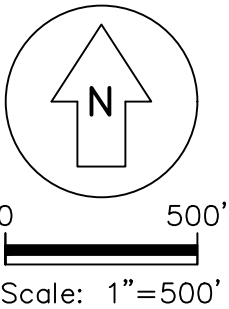
CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.

CITY IF CHEYENNE PARKS  
AND RECREATION DEPT

PIPELINE EASEMENT  
SITUATED IN PORTION OF  
LOT 1, BLOCK 2  
PLAINS INDUSTRIAL PARK  
NE¼, SECTION 1,  
T13N, R66W, 6TH P.M.,  
LARAMIE COUNTY, WYOMING.

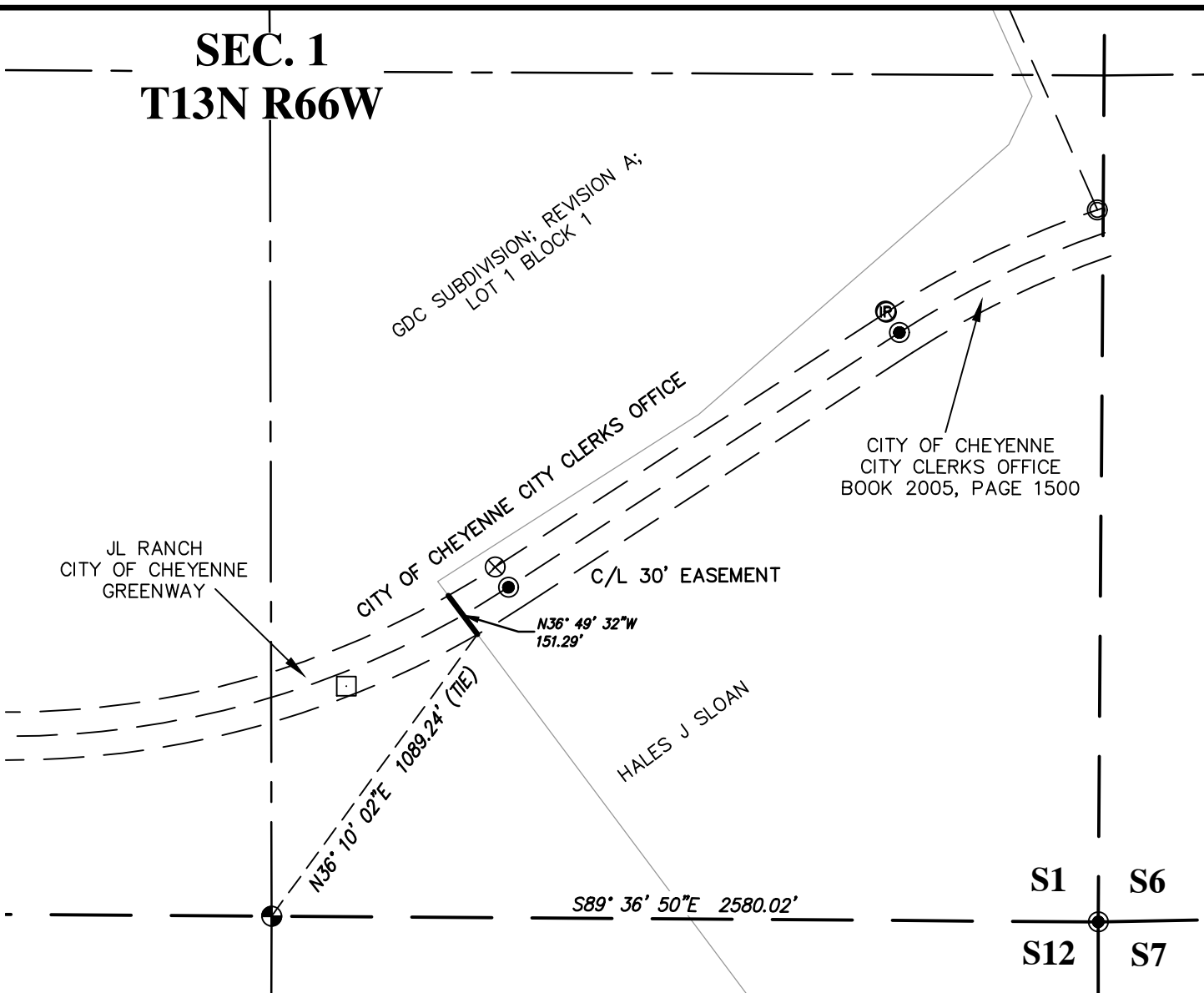
Date prepared: 12.21.2022





**STEIL SURVEYING SERVICES, LLC**  
PROFESSIONAL LAND SURVEYORS  
PLANNING & DEVELOPMENT SPECIALISTS  
1103 WEST 19th ST. CHEYENNE, WY. 82001 • (307) 634-7873  
756 GILCHRIST ST. WHEATLAND, WY. 82201 • (307) 382-9789  
www.SteilSurvey.com • info@SteilSurvey.com

SEC. 1  
T13N R66W



EASEMENT DESCRIPTION

A 30 foot wide pipeline easement, lying in a portion of the City of Cheyenne Greenway Tract, JL Ranch subdivision and that parcel recorded in Book 2500, Page 1500 situate Southeast Quarter of Section 1, Township 13 North, Range 66 West, 6th P.M., Laramie County, Wyoming said easement extending 15 feet each side of the following described centerline.

Beginning at the South Quarter Corner of said Section 1 thence N36°10'02"E, a distance of 1089.24 feet to the true point of beginning said point being on the South line of that tract recorded in Book 2005, Page 1500 thence N34°49'32"W, a distance of 151.29 feet to the North line of the City of Cheyenne Greenway tract JL Ranch Subdivision and said easement there terminates.

BASIS OF BEARINGS:

WYOMING STATE PLANE COORDINATES,  
EAST ZONE, NAD83-2011,  
US SURVEY FEET, DISTANCES ARE GRID  
DISTANCES.

NOTES

151 FEET  
9 RODS  
0.10 ACRES

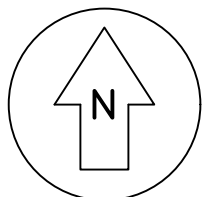
CITY OF CHEYENNE  
CITY CLERKS OFFICE

LEGEND

- FOUND W.D.O.T. R/W MONUMENT
- ⊙ FOUND ALUMINUM CAP LS 12045
- ⊗ FOUND 5/8" REBAR
- ⊕ FOUND 1/2" IRON PIPE
- ⊗ FOUND ALUMINUM CAP PELS 611
- ⊙ FOUND ALUMINUM CAP LS 519
- ⊕ FOUND ALUMINUM CAP PLS 10387
- PIPE LINE

CERTIFICATE OF SURVEYOR

I, Jeffrey B. Jones, A Professional Land Surveyor in the State of Wyoming, for and on behalf of Steil Surveying Services, LLC, hereby state, to the best of my knowledge, information and belief, that this map was prepared from field notes taken during an actual survey made by me or under my direct supervision; and that this map correctly shows the results of said survey and that the monuments found or set are as shown.



0 500'

Scale: 1"=500'



PIPELINE EASEMENT  
SITUATED IN PORTION OF THE  
CITY OF CHEYENNE GREENWAY TRACT,  
JL RANCH SUBDIVISION  
AND SE1/4, SECTION 1,  
T13N, R66W, 6TH P.M.,  
LARAMIE COUNTY, WYOMING.

Date prepared: 12.19.2022



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## MEMORANDUM OF EASEMENT

**State:** Wyoming  
**County:** Laramie  
**Grantor:** City of Cheyenne, Wyoming, a Municipal Corporation  
**Grantee:** Samson Exploration, LLC  
**Effective Date:** May 15, 2023

Notice is hereby given that the Grantor(s) named above have executed and delivered to the Grantee named above an instrument (the “**Easement**”) in which Grantor conveyed unto Grantee and its affiliates, successors, and assigns an easement, servitude, license, and right to use in, upon, across, through, over, and under the following lands (the “**Lands**”) located in the county and state named above:

Township 13 North, Range 66 West, 6<sup>th</sup> P.M.  
Section 1: Part NE/4 & Part S/2  
Laramie County, Wyoming

The Easement consists of the following components:

A non-exclusive term easement for pipelines across a 30’ wide strip of land (or wider during construction or repair) with a centerline depicted on the plat attached hereto as **Exhibit “B”**.

Grantee has the right to unilaterally file a notice replacing the preliminary plat attached hereto as **Exhibit “B”** with a final or as-built surveyed plat depicting the actual boundaries and/or centerlines of the easements granted by the Easement, and any such notice and revised plat shall supersede and replace the **Exhibit “B”** attached hereto.

The term easements are each effective for five (5) years following initial construction and for so long thereafter as some or all of the same shall be used for the purposes which are granted in the Easement with no cessation of all such use for more than five (5) consecutive years.

This Memorandum of Easement is executed by Grantor and Grantee and placed of record for the purpose of placing all persons on notice of the existence of the Easement, which is not being recorded. Executed copies of the Easement are maintained by Grantor and Grantee, and the full terms of the Easement shall be binding on the parties and are incorporated herein despite not being included in this Memorandum. This Memorandum may be executed as one document or in several partially executed counterparts, and the original and counterpart shall be construed together and shall constitute one instrument.

This Memorandum is signed by Grantor and Grantee as of the date of the acknowledgment of their signatures on the following page, but is effective for all purposes as of the Effective Date stated above.

EXECUTED this \_\_\_\_ day of \_\_\_\_\_, 2023.

**GRANTOR:**

CITY OF CHEYENNE

(SEAL)

Attest:

\_\_\_\_\_  
Kristina F. Jones, City Clerk

By:

\_\_\_\_\_  
Patrick Collins, Mayor

STATE OF WYOMING:     )

)

COUNTY OF LARAMIE     )

This instrument was acknowledged before me on this \_\_\_\_\_ day of \_\_\_\_\_,  
2023, by \_\_\_\_\_.

\_\_\_\_\_  
Notary Public

**GRANTEE:**

SAMSON EXPLORATION, LLC

By:

\_\_\_\_\_  
Andy Eltiste, Attorney-in-Fact

STATE OF COLORADO     )

)

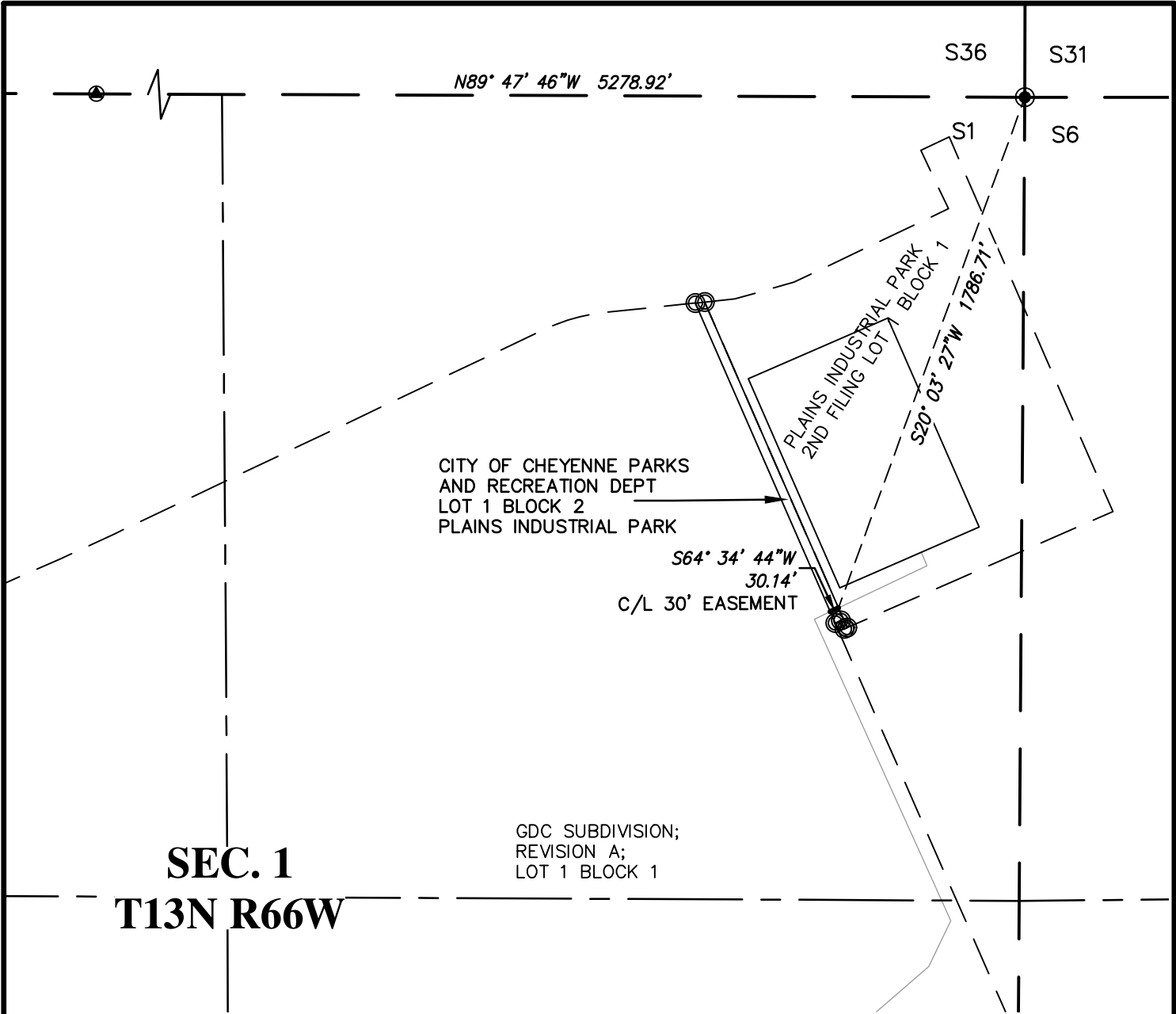
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By: \_\_\_\_\_

Exhibit “B”

[attach plat]



EASEMENT DESCRIPTION

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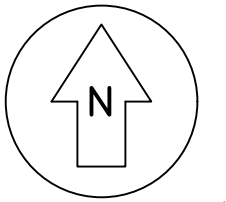
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Date prepared: 12.21.2022



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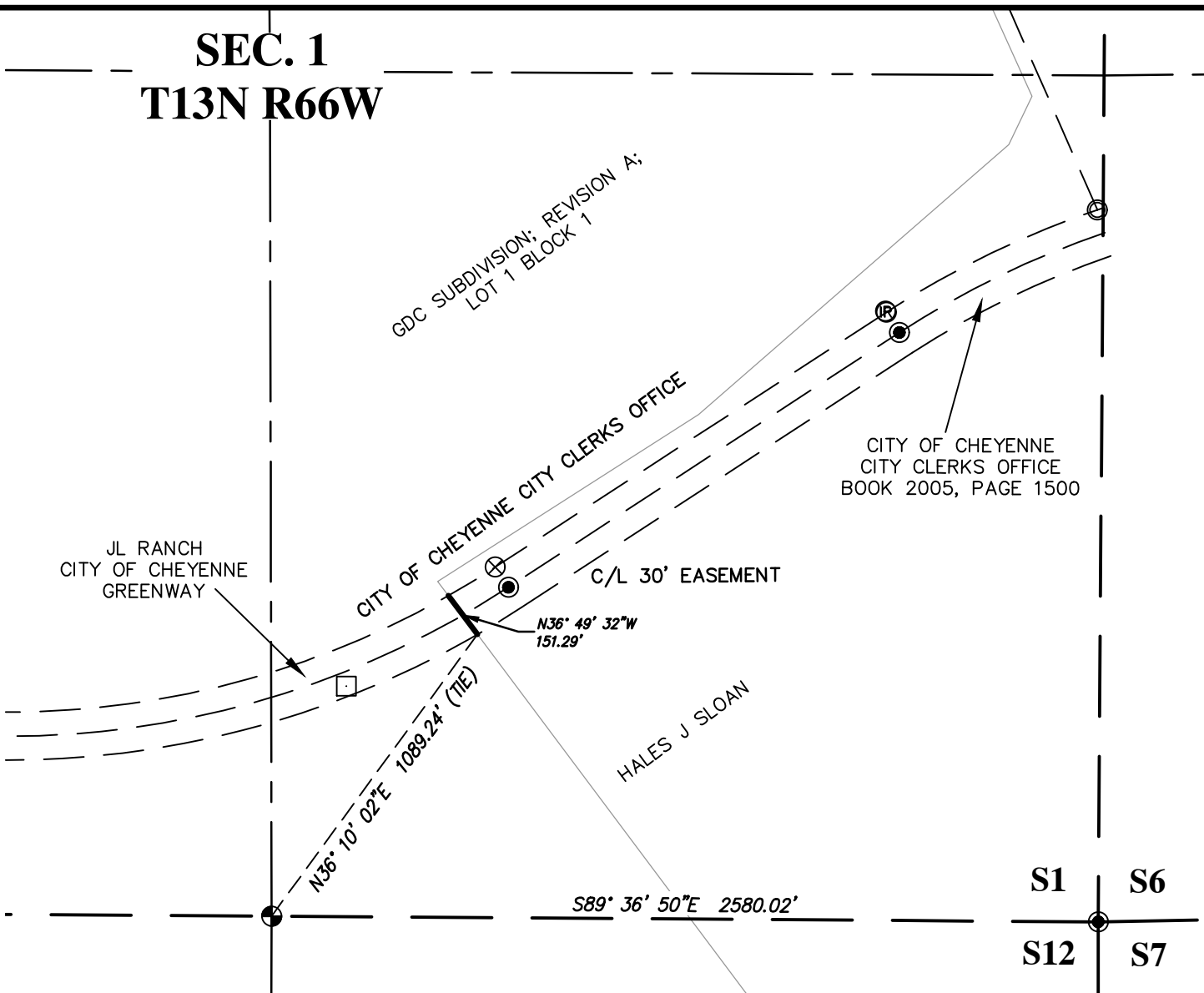


2022DWG/ 22090 SAGEBRUSH 1E PIPELINE PLATS.DWG



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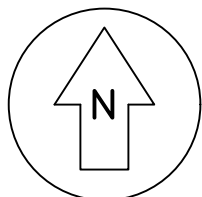
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